

2:00 PM **LINE 7**

26-CIV-00580

BRANDON ELIOTT STACY AS EXECUTOR TO THE ESTATE OF MARIANNE STACEY
VS. CLEAR RECON CORP., ET AL

BRANDON ELIOTT STACY AS EXECUTOR TO THE ESTATE OF MARIANNE STACEY
CLEAR RECON CORP.

NEIL E. OPDAHL
FRED T. WINTERS

CLEAR RECON CORP'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

The hearing is continued to November 18, 2026 at 2:00 p.m.

2:00 PM **LINE 8**

26-CIV-01031

JOSHUA WILSON, ET AL VS. ALON DESIGN AND REMODELING INC., ET AL

JOSHUA WILSON

PRO/PER

ALON DESIGN AND REMODELING INC.

MOTION TO STRIKE ANSWER OF DEFENDANT ELI ALON

TENTATIVE RULING:

Plaintiffs' Motion to Strike Answer of Defendant Eli Alon is **GRANTED**.

Defendant Ali Elon is ordered to file a verified answer to the complaint within ten (10) days of notice of entry of the formal order. (Code Civ. Proc., §§ 431.30, subd. (d); 446.)

On February 13, 2026, plaintiffs filed a verified complaint. On May 6, 2026, Elon answered the complaint. Elon's answer was not verified, and did not comply with Code of Civil Procedure, sections 431.30, subdivision (d) and 446, where he filed a general denial and an unverified answer. (*DeCamp v. First Kensington Corp.* (1978) 83 Cal.App.3d 268, 275.) Accordingly, the answer is defective and is ordered stricken. (*French v. Smith Booth Usher Co.* (1942) 56 Cal.App.2d 23, 29.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.